

(2) A pension may be granted in respect of service in the permanent Civil Service of the State to a person who receives a pension under the preceding subsection, in the same manner as if he had received a pension under section one of the principal Act.

Short title,
construction and
citation.

4. This Act may be cited as the Pensions (Governors of Dominions, &c.) Act, 1936, and shall be construed as one with the Pensions (Governors of Dominions, &c.) Acts, 1911 and 1929; and those Acts and this Act may be cited together as the Pensions (Governors of Dominions, &c.) Acts, 1911 to 1936.

CHAPTER 26.

An Act to amend the procedure under the Land Registration Act, 1925, for the making of orders declaring the registration of title to land to be compulsory on sale; to provide for the partial closing of, and otherwise amend the law with respect to, the Middlesex Deeds Registry; to amend subsection (4) of section seventy-five of the Land Registration Act, 1925; to amend the law with respect to the Insurance Fund established under the Land Transfer Act, 1897, and the fees payable under the Land Registration Act, 1925; and for purposes connected with the matters aforesaid. [14th July 1936.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendment
of s. 122 of
15 & 16
Geo. 5. c. 21.

1. Section one hundred and twenty-two of the Land Registration Act, 1925 (which relates to the procedure for the making, otherwise than at the instance of a county council, of orders declaring registration of title to land to be compulsory on sale) shall have effect

and be deemed always to have had effect as if in paragraph (i) thereof the words "and not more than eighteen months before the date on which it is to take effect" were omitted.

2.—(1) In this section, "the expression "the Middlesex Deeds Acts" means the Middlesex Registry Act, 1708, and the Land Registry (Middlesex Deeds) Act, 1891, as amended by or under any other Act, the expression "the Middlesex Deeds Register" means the memorials registered under the Middlesex Deeds Acts, and the indexes and other documents relating thereto, the expression "instrument" includes any document a memorial whereof is or would but for the provisions of this section be capable of registration under the Middlesex Deeds Acts, and the expression "the appointed day" means the day on which registration, under the Land Registration Act, 1925, of title to land becomes compulsory on sale throughout the administrative county of Middlesex.

Closing of
Middlesex
Deeds
Registry.
7 Anne c. 20.
54 & 55 Vict.
c. 64.

15 & 16
Geo. 5. c. 21.

(2) It shall not be necessary or permissible to register under the Middlesex Deeds Acts a memorial of any instrument made after the appointed day.

(3) No memorial of any other instrument shall be registered under the Middlesex Deeds Acts after the expiration of two years beginning on the appointed day, but nothing in this subsection shall affect the consequences which flow under those Acts from failure to register.

(4) Nothing in the foregoing provisions of this section shall be construed as prohibiting the making, in accordance with rules made under the Middlesex Deeds Acts, of any entry in the Middlesex Deeds Register signifying that a mortgage, a memorial whereof has been registered under the Middlesex Deeds Acts, has been discharged, but no such entry shall be made after the expiration of two years beginning on the appointed day.

(5) On and after the appointed day no search shall be made in the Middlesex Deeds Register except by the Chief Land Registrar or his officers.

(6) The provisions of section one hundred and twenty-six of the Land Registration Act, 1925, requiring

the Land Registry to be in London shall not be construed as prohibiting the removal of the Middlesex Deeds Register to a place outside London.

Amend-
ments of
s. 75 of
15 & 16
Geo. 5. c. 21.

3.—(1) The amendments specified in this section shall be made in subsection (4) of section seventy-five of the Land Registration Act, 1925 (which provides for indemnities to persons prejudicially affected by the registration of other persons as proprietors of registered estates by virtue of titles acquired under the Limitation Acts).

(2) The proviso to the said subsection (which prohibits the payment of any indemnity thereunder unless it can be paid without recourse to the Consolidated Fund) shall be repealed.

(3) At the end of the said subsection (4) there shall be inserted the following paragraph :—

“ An applicant for compensation under this section may appeal to the court from any refusal of the Registrar to award to him indemnity or against any decision of the Registrar as to the amount of any indemnity awarded, and in the event of any such appeal the applicant shall not be required to pay any costs except his own, even if unsuccessful, unless the court considers that the appeal is unreasonable.

In determining whether or not an indemnity is to be awarded under this section and in determining the amount of any such indemnity, regard shall be had, amongst other considerations, to the question whether or not the applicant and his predecessors in title have by negligence caused or contributed to the loss.”

(4) In the said subsection (4) the words “ in like manner as if such purchaser or person had suffered loss by the rectification of the register ” shall be repealed.

Surrender
of part of
assets of
land regis-
tration
insurance
fund.

4.—(1) The assets of the insurance fund at the commencement of this Act, except assets equal in value to the sum of one hundred thousand pounds, shall be applied at such time and in such manner as the Treasury may direct towards the redemption of the national debt.

(2) In this Act the expression "the insurance fund" means the insurance fund established under the Land Transfer Act, 1897.

60 & 61 Vict.
c. 65.

5.—(1) If at the end of any financial year the value of the assets of the insurance fund exceeds the standard value, an amount equal to the excess shall, at such time as the Treasury may direct, be paid out of the insurance fund into the Exchequer:

Provisions
for stand-
ardizing
value of
assets of
insurance
fund.

Provided that, if any part of that excess is attributable to a reduction of the standard value in that financial year, so much of the said amount as is equal to that part of the excess shall, in lieu of being paid into the Exchequer, be applied at such time and in such manner as the Treasury may direct towards the redemption of the national debt.

(2) If the insurance fund is at any time insufficient to pay indemnity for any loss chargeable thereon, an amount equal to the deficiency shall be paid to that fund out of the Consolidated Fund or the growing produce thereof, and if at any time it appears to the Lord Chancellor and the Treasury that the value of the assets of the insurance fund falls substantially short of the standard value, there shall be paid to the insurance fund out of the Consolidated Fund or the growing produce thereof such sum as the Treasury may think fit, not being more than the amount required to raise the value of the assets of the insurance fund, after paying any sums which have become payable therefrom, to the standard value; and subsection (4) of section eighty-five of the Land Registration Act, 1925 (which provides that, if the insurance fund is insufficient to pay indemnity for certain losses chargeable thereon, the deficiency shall be paid out of the Consolidated Fund), shall cease to have effect.

(3) In this section the expression "the standard value" means one hundred thousand pounds or such greater or less sum as may from time to time be fixed by the Lord Chancellor and the Treasury.

6. Any indemnity payable under section seventy-five or section eighty-three of the Land Registration Act, 1925, shall be payable out of the insurance fund and accordingly in subsection (1) of section eighty-five of the

Certain in-
demnities
to be
defrayed

out of
insurance
fund.

said Act for the words "by reason of the rectification or non-rectification of the register" there shall be substituted the words "under section seventy-five or section eighty-three of this Act".

Amend-
ments as to
fees.

7. Subsection (4) of section one hundred and forty-five of the Land Registration Act, 1925, shall cease to have effect, and the fee orders made under that Act relating and incidental to registration of title shall be arranged from time to time so as to produce—

- (a) amounts sufficient to discharge the salaries and other expenses incidental to the working of that Act (including such sums as, in the opinion of the Treasury, approximately represent the accruing liability attributable to the working of that Act in respect of pensions, allowances and gratuities under the Superannuation Acts, 1834 to 1935, as amended by any subsequent enactments);
- (b) such further amounts as are in the opinion of the Lord Chancellor and the Treasury reasonable, regard being had to any indemnities theretofore paid, and to the contingency that indemnities may thereafter become payable, under that Act.

Provision
as to
determina-
tion of value.

8. Any question arising under this Act as to the value of any assets of the insurance fund shall be determined by the Treasury.

Short title,
construe-
tion,
citation
and repeal.

9.—(1) This Act may be cited as the Land Registration Act, 1936, and shall be construed as one with the Land Registration Act, 1925, and that Act and this Act may be cited together as the Land Registration Acts, 1925 and 1936.

(2) The enactments mentioned in the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

SCHEDULE.

Section 9.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
15 & 16 Geo. 5. c. 21.	The Land Registration Act, 1925.	In subsection (4) of section seventy-five from the words "in like manner" to the end of the subsection; subsection (4) of section eighty-five; in section one hundred and twenty-two, the words "and not more than eighteen months before the date on which it is to take effect"; and subsection (4) of section one hundred and forty-five.

CHAPTER 27.

An Act to make provision with respect to the transfer of petroleum-spirit licences granted under the Petroleum (Consolidation) Act, 1928.
[14th July 1936.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The local authority empowered under the Petroleum (Consolidation) Act, 1928, to grant petroleum-spirit licences may transfer a petroleum-spirit licence granted by such an authority, by endorsement of the licence or otherwise, and the Secretary of State may transfer in like manner a petroleum-spirit licence granted by him.

Transfer of petroleum-spirit licences.
18 & 19 Geo. 5. c. 32.